

Court No. - 3

Case :- WRIT - C No. - 8819 of 2018

Petitioner :- M/S S.S. Industries

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

On the request of Sri Mahbood Ahmad learned counsel appearing for respondents no. 4 and 5, put up as fresh on 27th March 2018 before the appropriate Bench.

Order Date :- 21.3.2018

SKS

Court No. - 32

Case :- WRIT - C No. - 8819 of 2018

Petitioner :- M/S S.S. Industries

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Put up on 3.4.2018, by that time, Shri Mahboob Ahmad appearing for the respondent shall complete his instructions and shall make available all the relevant record.

Order Date :- 30.3.2018

Ravi Prakash

Court No. - 40

Case :- WRIT - C No. - 8819 of 2018

Petitioner :- M/S S.S. Industries

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard Sri Deepak Kumar Pandey, Advocate, holding brief of Sri B.C.Rai, learned counsel for the petitioner.

This writ petition has been filed for quashing of recovery proceedings under the citation dated 05.02.2018 and demand bill dated 19.02.2018 raised by Executive Engineer-respondent no.5.

The petition was entertained on 21.03.2018 and Sri Mahboob Ahmad, learned counsel for respondents-Electricity Department sought time to obtain instructions. On 30.03.2018, learned counsel for the respondent Sri Mehboob Alam had been directed to complete his instructions and make available all the relevant record.

Today, Sri Mahboob Alam, learned counsel for respondent nos.4 and 5 on the basis of oral instructions received from the officials stated before the Court that billing appears to be incorrect and not only this, the amount, which is sought to be recovered, is far less than the actual amount which deserves to be recovered from the petitioner. Thus either way the proceedings will have to be revised and in such a situation, what we find is that it will not be appropriate to keep the matter pending here.

We, accordingly, quash the recovery citation dated 05.02.2018

and direct that Executive Engineer- respondent no.5 to proceed to determine the actual dues of the petitioner and then raise the demand bill in accordance with the provisions of Electricity Act, 2003 and U.P. Electricity Supply Code, 2005. The petitioner may file his objections within 15 days from today and while passing orders, the Executive Engineer shall also consider all such objections raised by the petitioner in accordance with law.

In case the petitioner is still aggrieved, he can approach the forums, so provided under the Electricity Act and the U.P. Electricity Supply Code.

The impugned demand bill dated 19.02.2018 shall not be enforced unless the revised order is passed by the Executive Engineer as directed above preferably within three weeks of the filing of the objections.

With the aforesaid observations, the writ petition is allowed to the aforesaid extent.

Order Date :- 3.4.2018
KA